【英语一】 2015 阅读 Text2

基础大纲词 精读补充词 核心重难词
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P1 ① **Just how much** does the Constitution protect your digital data? ② **The Supreme Court will now** consider whether police can search the contents of a **mobile phone** without a warrant if the phone is **on or around a person** during an arrest.

①宪法到底可以在多大程度上保护你的数字资料呢？②最高法院即将考虑，警察是否可以在没有搜查令的情况下，搜查犯罪嫌疑人身上或者身旁手机里的内容。

P2 ① California has **asked** the justices **to refrain from a sweeping ruling**, particularly one that upsets the old assumption that authorities may **search through** the possessions of suspects **at the time of their arrest**. ② It is hard, the state argues, for judges to assess the implications of **new and rapidly changing technologies**.

①加州政府已经要求法官不要做出一概而论的裁决，尤其是推翻“执法当局在逮捕嫌疑犯时可以搜查他们的财物”这一旧有假定的裁决。②该州政府认为，法官很难评估日新月异、快速变化的新技术可能带来的影响。

P3 ① The court would be recklessly modest if it **followed California's advice**. ② Enough of the implications are discernable, even obvious, **so that** the justices can and should **provide** updated **guidelines to** police, lawyers and defendants.

①如果听从加州政府建议的话，最高法院真是“谦虚”得不计后果。②足够多的影响能够看得出来，甚至是显而易见的，正因为如此，法官们能够也应该向警方、律师以及被告提供最新的指导性意见。

P4 ① They should start by discarding California's lame argument that exploring the contents of a smartphone— a vast storehouse of **digital information**— **is similar to**, say, **going through** a suspect's purse. ② The court has ruled that police don't violate the **Fourth Amendment** when they **go through** the wallet or pocketbook of an arrestee without a warrant. ③ But exploring one's smartphone is more like entering his or her home. ④ A smartphone may contain an arrestee's **reading history**, financial history, **medical history** and comprehensive **records of** recent correspondence. ⑤ The development of “**cloud computing**”, meanwhile, has made that exploration **so much the easier**.

①他们应首先摒弃加州政府站不住脚的论点，即查看智能手机的内容——一个庞大的数字信息库——类似于翻查嫌犯的钱包。②最高法院已经裁定：当警方在没有搜查令的情况下翻看被捕者的钱包或手提包，没有违反宪法第四修正案。③但是查看一个人的智能手机更像是进入他或她的家里一样。④一部智能手机里可能包含有被捕者的阅读记录、财务记录、病史记录以及他们近期通信往来的详细记录。⑤与此同时，“云计算”的发展使得这种搜查更加容易。

P5 ① Americans should **take steps to protect their** digital **privacy**. ② But keeping **sensitive information** on these devices is increasingly a requirement **of normal life**. ③ Citizens still have a right to expect private documents to remain private and protected by the Constitution's **prohibition on unreasonable searches**.

①美国人应该采取措施保护他们的数字隐私。②但是把敏感信息保存在这些设备上正在日渐成为平常生活的一种需要。③公民仍然享有权利要求私人文件能够保持私密状态并且受到宪法禁止无理搜查条款的保护。

P6 ① **As so often is the case**, stating that principle doesn't ease the challenge of line-drawing. ② **In many cases**, it would not be overly burdensome for authorities to obtain a warrant to **search through** phone contents. ③ They could still invalidate **Fourth Amendment protections** when facing severe, urgent circumstances, and they could **take** reasonable **measures** to ensure that phone data are not erased or altered while **waiting for** a warrant. ④ The court, though, may **want to allow room for** police to cite situations where they **are entitled to** more freedom.

①通常情况是，阐明原则并不能减轻划定界限时的挑战。②在很多情况下，对执法当局而言，获得搜查手机内容的搜查令不会太麻烦。③在面临严峻、紧急的情况时，他们仍然可以使宪法第四修正案的保护条例失效，而且他们还可以在等待搜查令时，采取合理的措施确保手机数据不被删除或者修改。④尽管如此，最高法院可能想要为警方引证有权行使更多自由的情形留出余地。

P7 ① But the justices should not swallow California's argument whole. ② New, disruptive technology sometimes demands novel applications of the Constitution's protections. ③ Orin Kerr, a law professor, compares the explosion and accessibility of digital information in the 21st century with the establishment of automobile use as a virtual necessity of life in the 20th: The justices had to specify novel rules for the new personal domain of the passenger car then; they must sort out how the Fourth Amendment applies to digital information now.

①但是法官们不应该轻易接受加州政府所有的观点。②新的、颠覆性的技术有时需要对宪法的保护条例进行新的应用。③法学教授奥林·克尔把21世纪数字信息的爆炸和它的易获得性与20世纪将汽车使用确立为一种实质上的生活必需进行了比较：当时，法官们不得不为小轿车这一新的私人领域明确新的规则；现在，他们也必须解决第四修正案如何适用于数字信息的问题。

Q1. The Supreme Court will work out whether, during an arrest, it is legitimate to____. 细节题

[A] prevent suspects from deleting their phone contents

[B] search for suspects' mobile phones without a warrant

[C] check suspects' phone contents without being authorized

[D] prohibit suspects from using their mobile phones

最高法院将审议在逮捕过程中____是否合法。

A.阻止嫌疑人删除手机内容

B.在没有搜查令的情况下寻找嫌疑人的手机

C.在未经授权的情况下检查嫌疑人的手机内容

D.禁止嫌疑人使用手机

Q2. The author's attitude toward California's argument is one of____. 态度题

[A] disapproval

[B] indifference

[C] tolerance

[D] cautiousness

作者对加州论点的态度是____。

A.不认同

B.不关心

C.宽容

D.谨慎

Q3. The author believes that exploring one's phone contents is comparable to____. 细节题

[A] going through one's wallet

[B] handling one's historical records

[C] scanning one's correspondences

[D] getting into one's residence

作者认为，搜查一个人的手机内容就相当于____。

A.翻查一个人的钱包

B.处理一个人的历史记录

C.浏览一个人的通信记录

D.进入一个人的住所

Q4. In paragraph 5 and 6, the author shows his concern that____. 细节题

[A] principles are hard to be clearly expressed.

[B] the court is giving police less room for action.

[C] phones are used to store sensitive information.

[D] citizens' privacy is not effectively protected.

在第五段和第六段中，作者表达了对____的担忧。

A.原则难以清楚表达。

B.法院给警察的行动空间越来越小。

C.手机被用来存储敏感信息。

D.公民隐私没有得到有效保护。

Q5. Orin Kerr's comparison is quoted to indicate that ____. 例证题

[A] the Constitution should be implemented flexibly.

[B] principles of the Constitution should never be altered.

[C] California's argument violates principles of the Constitution.

[D] new technology requires reinterpretation of the Constitution.

引用奥林·克尔的类比是为了说明____。

A.宪法应该灵活实施。

B.宪法原则永不可更改。

C.加利福尼亚州的论点违反宪法原则。

D.新技术要求对宪法进行重新诠释。